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EC appointment: Why SC placed matter before CJI



AMAL SHEIKH

A TWO-JUDGE bench of the Supreme Court on Wednesday referred petitions challenging the 2023 law on the appointment of the Chief Election Commissioner (CEC) and other Election Commissioners (ECs) — which excludes the Chief Justice of India (CJI) from the process — to the CJI to consider forming a Constitution Bench (which has a minimum of five judges).

What the joint order said

While Justices Dipankar Datta and Satish Chandra Sharma were split on referring the matter to a larger bench, they agreed that it should be placed before the CJI. They said sending the issue first to a three-judge bench would be of "little worth" and would only delay a final decision on the important Constitutional questions raised by the case.

The judges flagged the long delays in deciding constitutional references. They noted that the Anoop Baranwal case (2023) took eight years to reach a final judgment and cited other references that remained pending for years. Calling such delays "a source of institutional embarrassment", they urged the CJI to consider setting up a permanent five-judge bench for Constitutional cases.

The 'Anoop Baranwal' case

The challenge to the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023, traces its origins to the Supreme Court's judgment in *Anoop Baranwal v. Union of India* in March 2023. In that ruling, a Constitution Bench had noted that Parliament had not enacted a law governing appointments to the Election Commission despite Article 324 of the Constitution contemplating one. It laid down an interim mechanism under which appointments would be made by a committee comprising the Prime Minister, the Leader of Opposition in Lok Sabha and the Chief Justice of India — until Parliament enacts a law.

The bench had underlined the importance of an independent Election Commission and observed that those entrusted with conducting elections must be insu-

THE 2023 LAW AND THE CHALLENGE IN TOP COURT: A TIMELINE

1950: Article 324(2) of the Constitution is framed. It provides that the Chief Election Commissioner and other Election Commissioners are appointed by the President, subject to any law Parliament may make on the matter.



SEPTEMBER 2026: A two-judge SC bench delivers a split verdict on petitions challenging the 2023 Act. While Justice Dipankar Datta holds that the challenge could be decided on existing Constitutional principles, Justice Satish Chandra Sharma says it raises substantial and novel Constitutional questions. Both judges issued a joint order referring the matter to the CJI to constitute a Constitution Bench to avoid further procedural delay.

1950-2023: For 73 years, Parliament does not enact any new law on this. Appointments to the Election Commission (EC) are made under the executive framework.

DECEMBER 2023: Parliament passes the Chief Election Commissioner and other Election Commissioners Act, 2023. The law replaces the Chief Justice of India with a Union Cabinet Minister nominated by the Prime Minister, resulting in a panel with a 2:1 executive majority.

2015: A writ petition is filed under Article 32, challenging the absence of a law governing appointments to the EC.

2018: A two-judge bench refers the matter to a Constitution Bench.

MARCH 2023: Eight years on, a five-judge Constitution Bench delivers its judgment in the 'Anoop Baranwal' case, holding that appointments to the EC should be made by a committee comprising the Prime Minister, the Leader of the Opposition and the Chief Justice of India until Parliament enacts a law.

The 2023 EC appointment law excludes the Chief Justice of India from the process. A challenge to the law has divided a two-judge bench

Datta and held that the challenge must be referred to a Constitution Bench. He said that the Supreme Court is examining the Constitutional validity of the 2023 Act for the first time. "There is no authoritative decision of this court till date pronouncing on the constitutional validity of the said Act," he said adding, "The decision on these writ petitions would be the first of its kind and it is all the more necessary that a reference is made."

The petitioners, however, had argued that the central legal question that the selection must be an independent process has already been decided by the 2023 Constitution Bench ruling.

For Justice Sharma, the key question was whether Parliament was justified in replacing the CJI with a Cabinet minister nominated by the PM. He said: "Whether or not Parliament was justified in not including a neutral selector in the selection committee" is "an important question arising for the first time before this court". Since this question "has not been dealt with in any precedent", he said, Article 145(3) left "no room for a decision on such question finally by the present combination" of two judges.

He viewed the government's arguments on separation of powers and the comparison with the collegium system as issues that required examination by a larger bench.

What is a Constitution Bench

As per Article 145(3), a Constitution Bench of five or more judges decides a "substantial question of law" involving the interpretation of the Constitution. A case does not go to a larger bench merely because it involves the Constitution. The question must be "unsettled" — that is, one the court has never authoritatively answered before. Constitution Bench rulings also carry greater weight than ordinary judgments.

Split verdicts often trigger referrals. When two judges cannot agree, the matter goes to the Chief Justice, who decides whether to send it to a larger bench. But the split itself does not automatically warrant a Constitution Bench — the court must still be convinced the dispute raises a substantial Constitutional question requiring authoritative determination.

In October 2022, the top court delivered a split verdict in the Karnataka hijab case. The matter was referred to a larger bench and remains pending more than four years later. Earlier this year, another split verdict arose on Section 17A of the Prevention of Corruption Act. That matter, too, went to a larger bench.

Article 324 Election Commission Of India

Anoop Baranwal case 2023

The Court's interim fix — PM, Leader of Opposition, and CJI

The 2023 judgment placed CBI, CVC and the Election Commission in the same category

The 2023 Act, in dropping the CJI for a PM-nominated Cabinet Minister

The Search Committee that shortlists candidates is headed by the Cabinet Secretary

Article 145(3) requires "substantial questions of law as to the interpretation of the Constitution" to go before a bench of at least five judges

Institutional delay in constituting benches
An institutionalized, rule-based permanent Constitution Bench rather than a discretionary practice.

Split verdict

Justice Datta said the petitions could be decided by the present bench. He said the top court had already settled the governing Constitutional principle in *Anoop Baranwal*.

Justice Sharma said a Constitution Bench should hear the case as the SC is examining the Constitutional validity of the 2023 Act for the first time.

ister nominated by the PM and the Leader of Opposition, he observed that a minister bound by collective responsibility "cannot be expected to defy his own nominator". Thus, the presence of the Leader of Opposition in the Selection Committee becomes "largely ornamental", he said. He also emphasised the perception test — "it is not enough for the EC to be independent, it must also appear to be independent". On the petitioners' argument that the law gives the executive overwhelming influence over appointments, he said it "does appear to have substance", while stating that these were only *prima facie* observations.

Justice Datta also rejected the government's comparison between the EC selection process and the collegium system for judicial appointments. He said judicial appointments involve the executive at multiple stages and described the popular notion that "judges appoint judges" as a "myth". He raised concerns about the selective implementation of Collegium recommendations and said the absence of a neutral member in the Collegium could not justify the absence of a neutral member in the EC appointment process. He described the comparison drawn by the government as "disingenuous, evasive and disquieting".

Constitution Bench issue: What Justice Sharma said

Justice Sharma disagreed with Justice

lated from executive influence.

Parliament subsequently enacted the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023. But the law replaced the CJI on the selection committee with a Union Cabinet minister nominated by the Prime Minister. The government, therefore, got two representatives on the three-member panel, alongside the Leader of Opposition.

Constitution Bench issue: What Justice Datta said

Justice Datta took the view that the petitions could be decided by the present bench itself. According to him, the top court had already settled the governing Constitutional principle in *Anoop Baranwal*, which held that appointments to the EC cannot remain under "exclusive executive control". The question now, he said, was whether the 2023 law complies with that principle. That exercise was "no more than the application of the settled principles of law to the facts of the case" and did not require a Constitution Bench, he said. Justice Datta, therefore, held that "neither any Constitutional bar nor a precedent precludes hearing of these petitions by the present Bench".

At the same time, Justice Datta expressed concerns about the structure of the selection committee under the 2023 law. Referring to the panel comprising the PM, a Cabinet min-

Super El Niño to add 15,800 heat deaths in India: report

Climate Impact Lab says this year's El Niño is a 'postcard from our future', bringing temperatures climate change is projected to deliver 20 years later; national rainfall deficit is at 15% below normal

Jacob Koshy
NEW DELHI

India could see an estimated 15,800 additional heat-related deaths, give or take 1,600, between September 2026 and February 2027, as the current Super El Niño drives unusually high temperatures, according to a report made public on Wednesday by the Climate Impact Lab. The estimate is relative to average conditions during the corresponding months from 1996-2025.

Globally, the report projects 451,000 additional heat-related deaths during the first six months of the El Niño event, including 239,000 during the September-2026-February-2027 period. It projects 19,300 deaths in Indonesia; 19,400 across the Philippines, Vietnam, Thailand, and Cambodia; 13,300 in Brazil; and 66,800 across the Sahel, a 5,000-kilometre swathe of about 10 countries across Africa, including Senegal, the Gambia, and northern Nigeria.

"This report allows decision-makers to see exactly where emergency actions



Dry spell: Heat is increasing electricity demand with nearly 40% of coal-fired power plants clocking critically low fuel stocks. FILE PHOTO

can be taken now to save tens of thousands of lives in the coming months," Michael Greenstone, co-founder, Climate Impact Lab, University of Chicago, said.

The report describes the current event as a Super El Niño, an informal term generally used for exceptionally strong El Niño conditions. El Niño occurs when waters in the central and eastern tropical Pacific become unusually warm, altering atmospheric circulation and shifting rainfall and temperature patterns worldwide. Forecasts earlier this month projected a greater than 90% chance of a very strong El Niño

during the northern hemisphere autumn and winter, with eastern equatorial Pacific sea surface temperatures already more than 3°C above normal.

Its effects are already being observed in different regions. Indonesia has experienced conditions conducive to wildfires, while parts of Central America have faced drought-related agricultural impacts. "This year's El Niño is also a 'postcard from our future', bringing temperatures climate change is projected to deliver 20 years in the future. In this way, it offers a glimpse at what lies ahead without new invest-

ments in adaptation," an accompanying press statement noted.

Rainfall deficit

In India, the southwest monsoon is entering its withdrawal phase after a season marked by deficient rainfall. The national rainfall deficit stood at about 15% below normal up to September 22, 2026 with larger shortfalls in southern and eastern parts of the country.

The heat is also increasing the demand for electricity, with nearly 40% of India's coal-fired power plants reporting critically low fuel stocks amid increased power demand associated with hotter than usual weather linked to the El Niño.

The Climate Impact Lab says it applies previously estimated temperature-mortality relationships across 24,378 regions to seasonal temperature forecasts, accounting for local climate, vulnerability, and adaptive capacity. The report does not spell out the underlying numerical relationship or coefficients connecting a particular temperature increase to a number of deaths.

El Niño is a periodic warming of the central and eastern equatorial Pacific.

A "Super" El Niño crosses roughly 2°C above the long-term baseline in the Niño 3.4 region a threshold reached only three times in the past half-century (1982–83, 1997–98, 2015–16), with 2026 now tracking to potentially exceed all of them

Climate Impact Lab, University of Chicago India's Heat Action Plan (HAP) network-from a single pioneering plan (Ahmedabad, 2013, built after a 2010 heatwave that tripled the city's daily death rate) to more than 250 city and district-level plans spread across the 23 states

Ministry of Home Affairs formally added heatwaves (and lightning) to India's list of notified natural calamities, following a recommendation from the Sixteenth Finance Commission.

Heat-aggravated cardiovascular, respiratory, and renal conditions

4 states out of Uttar Pradesh? Politics behind demand to split most populous state

Vikas Pathak

New Delhi, September 23

UTTAR PRADESH minister and Suheidev Bhartiya Samaj Party leader Om Prakash Rajbhar has claimed the state will be divided into four, and that the Purvanchal region will get a "Rajbhar Chief Minister". At a public meeting Sunday, Rajbhar claimed that Prime Minister Narendra Modi told him that the division could happen after the ongoing caste census.

Uttar Pradesh BJP sources brushed it off as pre-poll posturing. "He perhaps wants to energise his cadre by making them believe that he can be Chief Minister and they can also get some posts," said a state BJP insider who did not wish to be named.

But such a demand is not new. During her tenure as chief minister from 2007 to 2012, Mayawati created ripples by backing a division of the state.

How is a state divided?

This is what Article 3 of the Constitution states: "Parliament may by law... form a new State by separation of territory from

any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State... provided that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affects the area, boundaries or name of any of the States, the Bill has been referred by the President to the Legislature of that State for expressing its views thereon within such period as may be specified in the reference or within such further period as the President may allow and the period so specified or allowed has expired."

In simple terms, this means that the President must recommend such a Bill — thus showing the intent of the Centre — and the state Assembly must be consulted and given a finite period to express its views. What is crucial here is that the latter's views are not binding on Parliament. And what is required to alter the boundaries of a state is just a simple majority in both its Houses.

This makes it relatively easy for Parliament to alter boundaries of the state by or-

• The 2011 proposal for dividing UP



ordinary legislation even without the consent of the state's Assembly.

The four new states created since 2000, Uttarakhand, Jharkhand, Chhattisgarh, and Telangana, all saw strong people's movements demanding a separate state. That is not the case in Uttar Pradesh. While

the demand for Bundelkhand has been raised from time to time, even that has cooled down in the past few years.

Why was there a demand for division of Uttar Pradesh?

In November 2011, the Mayawati government moved and passed a resolution in the Assembly proposing to divide the state into Purvanchal, Bundelkhand, Awadh Pradesh and Paschim Pradesh (*see map*). The state government argued that Uttar Pradesh's vast size made administration and development difficult and that smaller states could lead to better governance.

The resolution was sent to the Centre but was not pursued further by the Samajwadi Party (SP) government that came to power in 2012.

At Mayawati's peak, such a split would have favoured her. All four regions of the state have a sizable Dalit population, between 16% and 28%. The Scheduled Caste population in all of Uttar Pradesh is around 21%. Her Bahujan Samaj Party (BSP) could, therefore, have emerged as a force in four states, establishing itself as a national party

in the eyes of voters.

What further worked for Mayawati in 2011 was that the Yadav population in Uttar Pradesh — the core of then arch-rival SP — was not evenly distributed in terms of its political heft. The SP had two major belts — the Etah-Mainpuri-Etawah-Firozabad belt in the west, and the Yadav belt in eastern Uttar Pradesh around Jaunpur, Azamgarh, Ghazipur and Mau. The move could have split the SP's Yadav belts and pushed Muslims into voting for the BSP. However, the BSP declined over time and the proposal died before any of this could happen.

Ajit Singh of the Rashtriya Lok Dal (RLD) had also demanded a "Harit Pradesh" in western Uttar Pradesh. The reason: his party's Jat support base dominates the region; their numbers aren't high outside western Uttar Pradesh.

What about Rajbhar's claim?

While for the reasons mentioned above, the SP would not want UP to be divided, any such idea would not work for Yogi Adityanath as well. Right now, apart from his Hindutva image, what raises Adityanath's

national stature is that he has been Chief Minister of India's most populous state. For that advantage to continue to accrue to him, UP must remain a single state.

For the BJP, too, the fact that it has won Uttar Pradesh consistently — with a dip in the 2024 Lok Sabha polls — has added to its political heft over the years. Because of its size, its centrality to many Hindu cultural symbols and holy sites, and its being the core of the 'Hindi heartland', UP has had tremendous political heft in India, even if it has been economically a largely underdeveloped state.

It is often said that the road to Delhi passes through Lucknow. Indeed, absolute majorities of any party — be it the BJP or the Congress before it — at the Centre have always come on the back of strong performances in Uttar Pradesh. No party has ever won a Lok Sabha majority in India on its own after a poor showing in UP, though there have been instances of coalition governments coming to power after a modest showing in the state. Rajbhar's claim, therefore, is not one that the BJP, or even the SP, would want to back.

Article 3 lets Parliament create, alter, or merge states by ordinary legislation

Administrative span

Fiscal viability

Development disparity indices

Historical and cultural coherence

Security and governance considerations

Road to Delhi passes through Lucknow

WHO chief: Matter of time before US returns to world health agency

Anuradha Mascarenhas
Boston, September 23

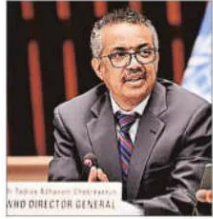
WORLD HEALTH Organization (WHO) Director General Tedros Adhanom Ghebreyesus said he hopes the United States will re-join the global health agency and disclosed that he has been in talks with US Health and Human Services Secretary Robert F Kennedy Jr.

"The US leadership is very important and I want to assure you that we have continued to communicate from our side. It is a matter of time until the US joins the WHO," Dr Ghebreyesus told reporters at a Health Coverage Fellowship programme conducted by the Centre for Health Communication at the Harvard T H Chan School of Public Health in Boston.

The US formally notified the WHO of its withdrawal in January 2026, citing concerns over the agency's handling of the COVID-19 pandemic. The move is significant as US has historically been WHO's largest donor, providing both assessed contributions and voluntary funding. During the 2022-23 biennium, the US contributed \$1.284 billion, according to WHO.

US funding has supported programmes ranging from emergency response and polio eradication to HIV, tuberculosis, immunisation, maternal and child health and other public health initiatives. WHO has said the loss of US support has created major funding gaps, forcing the agency to reprioritise programmes and contain costs.

The importance of the US,



Tedros Adhanom Ghebreyesus

however, extends beyond money. Dr Ghebreyesus pointed to the expertise and global reach of institutions such as the Centers for Disease Control and Prevention and the National Institutes of Health. "No other organisation can replace what WHO does," its chief said, pointing to its role in coordinating responses to major health crises such as Ebola. "We prefer to play a positive role because US leadership is important," he said.

Speaking ahead of the second United Nations General Assembly high-level meeting on "Pandemic Prevention, Preparedness and Response" on September 25, Dr Ghebreyesus said the world must not lose sight of the lessons of COVID-19, when health systems were overwhelmed and inequalities were exposed. "Of course, we can never say that the world is prepared enough for the next pandemic," he said, while adding that global health security has nevertheless been strengthened since COVID-19. He cautioned against "politicising" or "weaponising" pandemics.

The US had historically supplied around 18% of WHO's total funding
WHO to cut its 2026–27 budget by a fifth
WHO responsible for global pandemic preparedness, disease surveillance, and health-system support in dozens of low-income countries had its core operating capacity tied,
Build a real reserve or contingency buffer
Diversify the donor base horizontally
Keeping technical and scientific channels open even when political relations sour

'Say our name, Naoero': A nation renamed stands up at the UN

Associated Press

New York, September 23

HIS VOICE forceful and proud, he rose in front of the world's largest gathering of leaders on behalf of his nation and announced that he had something important to say.

The tiny South Pacific island nation of Nauru, its president said, had altered its name - and reclaimed its heritage in the process.

"I have travelled far," David Adeang said Tuesday at the United Nations. What was known to the world for many years as Nauru, Adeang said, was returning to the name and pronunciation of its past: Naoero.



President of Naoero David Ranibok Adeang at the 81st session of UNGA on Tuesday. AP

"There are moments in the life of a nation when its people are called to remember who they have always been," Adeang said in his speech at the UN General Assembly in New York. "This is such a moment for us."

Though the names are similar and, in essence, the same word, the shift in spelling and



pronunciation represents the nation's effort to recast - re-brand, even - itself for its own people as much as for the outside world.

He called it not a change but an effort to "affirm a truth".

"For many years, the world

has known our country as Nauru. Nauru is how our name sounded to those who found it hard to say, and the world kept it," Adeang said. "But it is not the name our people used among themselves."

The nation, an eight-

square-mile island with about 12,000 people, became independent in 1968 after longtime colonial rule under the United Kingdom, New Zealand, Australia and Germany.

It announced the renaming in August after signalling its intent in February.

The country's international code is changing from NRU to NRO and its people will be known as dei-Naoero instead of Nauruan. Commonly known abroad by the pronunciation of Now-roo, the new name is spoken as Now-ero.

A name, obviously, is a pivotal and intimate expression of a nation's identity on any stage, domestic or international.

Adeang's remarks Tuesday reflected this as he carefully pronounced the name to differentiate it from its former pronunciation.

"We do not make this choice to erase our past. We make it because we honor it," he said.

"That name carries the memory of our ancestors, our language, and our identity. It has been there all along. Never lost, never absent. Today, we restore Naoero."

And then, after completing his address about the issues that face his people - rising seas, economics, respect on the global stage - he concluded his address with three words: "Say our name."

The name **Naoero** is pronounced "**NOW-e-ro**" (or *now-eh-roh*), replacing the previous international pronunciation of "Nauru" (*now-roo*)

8 square- mile island nation

12,000 people

Independent in 1968 (UK, New Zealand, Australia and Germany)



**What is the
phenomenon of
'cloudbursts'?
Explain.**

Thank you

“The price of success is daily effort”



gallantias@gmail.com



+91 9746035110